



NEW MEXICO ASSOCIATION OF REALTORS® — 2025
INFORMATION SHEET



MANUFACTURED AND MODULAR HOUSING AND OTHER OFF-SITE
CONSTRUCTION

This form is NOT a disclosure and does NOT provide property-specific information. The general information contained herein is not an exhaustive analysis of the subject matter. Brokers are not experts in the subject matter. If you have additional questions or concerns, you are encouraged to conduct further research and to contact a subject-matter expert.



BUYING OR SELLING A MANUFACTURED HOME IS DIFFERENT THAN BUYING OR SELLING A SITE-BUILT HOME IN SEVERAL IMPORTANT WAYS. THIS SUMMARY DOES NOT INCLUDE EVERY POSSIBLE ISSUE THAT MAY ARISE, AND IT IS NOT A SUBSTITUTE FOR LEGAL ADVICE. CONSULT AN ATTORNEY IF YOU SHOULD HAVE QUESTIONS.

1. TYPE OF OFF-SITE BUILT HOUSING.

A. MOBILE HOME / TRAILER HOME

A factory-built house on a permanent chassis constructed prior to enactment of HUD Code on June 15, 1976. There are no HUD identifying tags.

B. MANUFACTURED HOUSING

A factory-built homes built as dwelling units of at least 320 square feet in size with a permanent chassis to assure the initial and continued transportability of the home. All transportable sections of manufactured homes built in the U.S. after June 15, 1976 must contain a certification label. The label certifies that the manufacturer has built the home in accordance with HUD's Manufactured Home Construction and Safety Standards (the Standards). Manufactured homes also have a data plate (also known as a data compliance certificate which is a paper label affixed inside the home and is the size of a standard sheet of paper (8 1/2" x 11"). The Data Plate can be found in a kitchen cabinet, an electrical panel, or a bedroom closet and includes the serial number and date of manufacture of the home. This includes manufactured homes with additions and improvements.

C. MODULAR

A factory-built house (is excluded from the coverage of the National Manufactured Housing Construction and Safety Standards Act) constructed in compliance with the standards of the regional, state, or local building code used by the governmental unit where the house is to be located. This usually means one of the model codes (BOCA, UBC, etc.). Most modular homes are built on a 2 x 10 platform and are designed to be placed over a basement or crawl space foundation. A small percentage, known as on-frame modular homes are built on a permanent chassis like manufactured homes. This home has a paper tag (in the shape of NM with the Zia symbol with Construction Industries Division name on it) affixed inside the home and built to International Residential Code (IRC). In New Mexico, Modular Homes are not subject to titling with the Motor Vehicle Division.

2. TITLE.

Manufactured homes are considered motor vehicles for registration and title purposes, even if they are taxed as real property. Information about the title and liens is available from the Motor Vehicle Division.

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INITIALS SIGNIFY THAT THE BUYER(S) AND/OR SELLER(S) HAS RECEIVED AND REVIEWED THIS
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3. LENDER CRITERIA.

Lenders may have different rates and terms for manufactured homes and will determine if the manufactured home qualifies for the loan. The following may be required by a lender for the financing of a manufactured home:

- A copy of the physical deactivated title from the Motor Vehicle Division (“MVD”). The title will be marked “Inactive” across the face of the title. Alternatively, the lender may accept a printout from the MVD showing the title status as “Inactive.”
- Evidence that the home is being taxed as real property by the County Assessor (valuation authority). Most county assessors will issue a letter stating the home is being taxed as real property.
- Evidence the home is located on a permanent foundation, which means it is immovable. Among other requirements, the home’s tongue, wheels, and axels have been removed. Whether a foundation qualifies as a permanent foundation is determined by a permit from the State of New Mexico Manufactured Housing Division and/ a licensed New Mexico structural engineer’s report with certification.
- Most lenders will require evidence that the home has been moved only once - as a new home from the original dealer to the current location. Depending on the lender, evidence may include an opinion from an engineer that structurally the home appears to have not been installed at a prior location or documentation from the dealer that the home has never been installed at a prior location.
- If the home was manufactured after June 15th, 1976, HUD certification labels located on the outside of the home for each transportable unit and the data plate located inside the home. If any of these items are missing, the lender may require the remedial items from the Institute for Building & Technology Safety (www.ibts.org).

4. ZONING AND OTHER RESTRICTIONS.

A. STATE LAW: MANUFACTURED HOUSING AND ZONING ACT (3-21A-1 NMSA) (“Act”).

i. Definitions under the Act:

- "multi-section manufactured home" means a manufactured home or modular home that is a single-family dwelling with a heated area of at least thirty-six by twenty-four feet and at least eight hundred sixty-four square feet and constructed in a factory to the standards of the United States department of housing and urban development, the National Manufactured Housing Construction and Safety Standards Act of 1974 and the Housing and Urban Development Zone Code 2 or the Uniform Building Code, as amended to the date of the unit's construction, and installed consistent with the Act and with the rules made pursuant thereto relating to permanent foundations;
- "mobile home" means a movable or portable housing structure larger than forty feet in body length, eight feet in width or eleven feet in overall height, designed for and occupied by no more than one family for living and sleeping purposes that is not constructed to the standards of the United States department of housing and urban development, the National Manufactured Housing Construction and Safety Standards Act of 1974 and the Housing and Urban Development Zone Code 2 or Uniform Building Code, as amended to the date of the unit's construction or built to the standards of any municipal building code; and
- "excavated site" means a site that results in the upper plane of the concrete slab, or similar component of any other authorized permanent foundation system, being below ground level or grade.

- ii. **Manufactured Housing; Permissible Regulations.** No city or county or any planning or zoning agency thereunder shall exclude multi-section manufactured homes from a specific-use district in which site-built, single-family housing is allowed or place more severe restrictions upon a multi-section manufactured home than are placed upon single-family, site-built housing within that specific-use district so long as the manufactured housing



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is built or constructed according to the Housing and Urban Development Zone Code II or the Uniform Building Code. City and counties or any planning and zoning agency thereunder is authorized to regulate manufactured housing to require that it meets all requirements other than original construction requirements of other single-family dwellings that are site-built homes in the same specific-use district and to further require by ordinance that such manufactured housing be consistent with applicable historic or aesthetic standards.

- iii. **Mobile homes; permissible regulations.** No city or county or any planning or zoning agency thereunder, may regulate the occupancy or location of dwelling units in such a way as to effect the reasonable regulation of mobile homes. Such regulation may exclude mobile homes from residential-use districts and restrict them to mobile home parks or mobile home subdivisions.
- iv. **Impermissible regulations.**
- No ordinance or regulation authorized by the Act shall regulate the original construction of the manufactured home or mobile home.
 - No ordinance or regulation otherwise authorized or permitted by the Act shall be permissible or enforceable if it would have the direct or indirect effect of requiring that a multi-section manufactured home be installed in an excavated site in order to be included in a specific-use district in which site-built, single-family housing is allowed.
- v. **Private covenants and deed restrictions; local government restrictions.**
- Nothing in the Act or any ordinance or regulation adopted pursuant thereto shall be construed as abrogating or limiting a recorded restrictive covenant or deed restriction.
 - The provisions of the Act shall not be construed as abrogating or limiting the powers of cities or counties regarding the exercise of zoning, planning and subdivision powers except to the extent the exercise of such powers is inconsistent with the provisions of the Act and the Manufactured Housing Act.
- vi. **Existing ordinances.** The Act shall not apply to any ordinance or regulation adopted by a home rule municipality which was adopted prior to January 1, 1987 or an ordinance or regulation adopted by a home rule municipality after January 1, 1987 which is not inconsistent with the Act. However, if such ordinance or regulation is repealed then the Act shall apply thereafter to that home rule municipality.

B. Local ordinances and Restrictive Covenants. There may be local ordinances and/or restrictive covenants that prohibit or restrict use, location, or installation of manufactured homes. **Buyer is advised to consult legal counsel to review local ordinances and restrictive covenants.**

5. OTHER ISSUES.

- The seller of a manufactured home should inform the Realtors®, buyer and title company that the home is manufactured home and the buyer should inform the lender, appraiser, inspectors, and the insurance company that the home is a manufactured home.
- Title insurers may limit the circumstances under which they will insure a manufactured home.
- Homeowner's insurance for a manufactured home differs from that for a site-built home. The buyer should purchase homeowner's insurance specific to a manufactured home or claims may be denied.
- The seller should provide to the buyer any information about transferable warranties.

6. **FOR MORE INFORMATION.** For further information, call the State of New Mexico Manufactured Housing Division, the local Motor Vehicle Division, the local County Assessor and/or an attorney familiar with manufactured home issues.

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